

LAKE ILLAWONG RESIDENTIAL VILLAGE

VILLAGE DISPUTE RESOLUTION PROCEDURE

September 2026

1. About This Document

This document sets out the process for resolving Village Disputes at Lake Illawong Residential Village under the Retirement Villages Act 1986 (Vic) and the Retirement Villages Regulations 2026 (Vic).

This document is written in plain language and is intended to be easy to understand.

2. Objectives

The objectives of this Procedure are to:

- set out the Village Dispute Resolution Procedure for Lake Illawong Residential Village;
- ensure that Village Disputes are handled fairly, promptly and respectfully; and
- encourage the effective resolution of Village Disputes wherever reasonably possible.

3. No Rights Excluded

Nothing in this Procedure takes away a person's right to seek to resolve a Village Dispute through another process that may be available to them.

A person is not required to participate in or complete this Procedure before exercising any rights or using any external dispute resolution process available to them.

Participation in the Village Dispute Resolution Procedure is encouraged but is not mandatory.

4. Scope

4.1 What is a Village Dispute?

A Village Dispute is either a Management Dispute or a Resident Dispute.

4.2 What is a Management Dispute?

A Management Dispute is a dispute between a resident and the Operator of the Village about:

- the control, management or administration of the Village by the Operator;
- an action or failure to act by the Operator that affects a resident's use or enjoyment of the Village; or
- the provision of services, or failure to provide services, by the Operator to residents of the Village.

A Management Dispute may also include other matters that fall within the meaning of a Village Dispute under the retirement villages legislation.

4.3 What is a Resident Dispute?

A Resident Dispute is a dispute between residents of the Village about an action or failure to act by a resident that affects:

- another resident's use or enjoyment of the Village; or
- another resident's use of services provided by the Operator.

4.4 What is Not Covered?

A Village Dispute does not include:

- general feedback or a concern expressed to the Operator;
- a general request for a person to take an action or stop taking an action; or
- a matter already being dealt with through a legal or other dispute resolution process.

Ordinary requests for repair, maintenance or operational attention are not, by themselves, Village Disputes and should continue to be raised through the Village's usual Problem Reporting System.

4.5 We May Ask for Clarification

If it is unclear whether a resident intends to notify us of a Village Dispute under this Procedure, we may ask the resident to clarify whether they intend to do so.

4.6 Who May Use This Procedure?

A Village Dispute may be notified:

- by a resident personally; or
- on behalf of a resident by a person authorised to represent them.

We may ask a representative to provide reasonable evidence of their authority to act for the resident.

4.7 No Fees or Charges

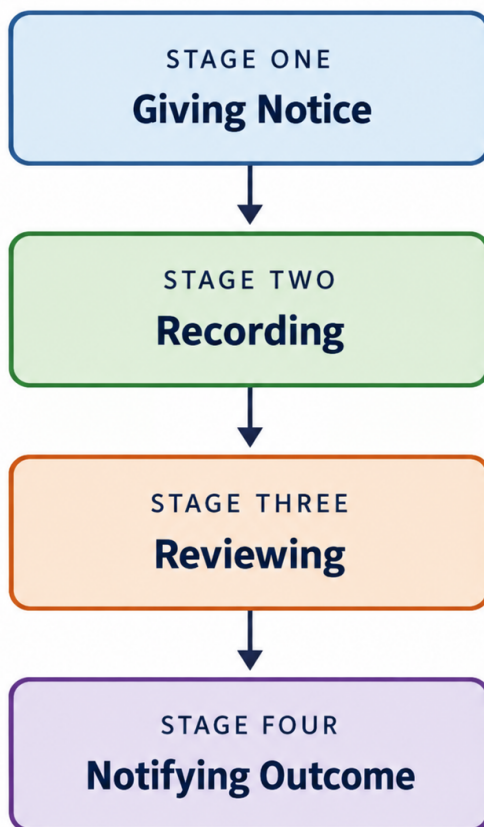
We will not impose any fee or charge on a resident for raising a Village Dispute under this Procedure.

5. Village Disputes

5.1 Overview

The Village Dispute Resolution Procedure has four stages, as shown below. We will seek to resolve a Village Dispute as early in the process as reasonably possible.

Village Dispute Resolution Procedure



5.2 Stage One — Giving Notice of a Village Dispute

A resident may give notice of a Village Dispute verbally or in writing.

Notice may be given:

- in person or by telephone;
- by email or other written communication; or
- through our online dispute notification form.

A resident may give notice to our Primary Contact Person, or to our Alternative Contact Person if the dispute involves the Primary Contact Person or the Primary Contact Person is unavailable or not able to deal with the dispute.

Contact Details	Primary Contact Person	Alternative Contact Person
Name	[To be inserted]	[To be inserted]
Position	[To be inserted]	[To be inserted]
Telephone	[To be inserted]	[To be inserted]
Postal address	75 Gladesville Blvd, Patterson Lakes VIC 3197	75 Gladesville Blvd, Patterson Lakes VIC 3197
Email	[To be inserted]	[To be inserted]

The resident should provide enough information for us to understand the dispute, including what has happened and the outcome the resident is seeking.

We may ask for further information or clarification where this would help us understand or resolve the dispute.

5.3 Stage Two — Recording the Dispute

The Village Dispute is recorded in our Relations System.

The resident will receive a copy of the record of the dispute.

5.4 Stage Three — Reviewing the Dispute

We will review the dispute as soon as practicable and seek to resolve it fairly and promptly.

In reviewing the dispute, we may:

- meet or speak with the resident and any other person involved;
- obtain further information about the matters raised;
- review relevant documents or records;
- consider the views of the people involved;
- seek further information or advice where appropriate; and
- consider practical options for resolving the dispute.

For a Resident Dispute, we may speak separately with each resident and, where appropriate, bring the residents together to discuss the matter. Each resident will be given a reasonable opportunity to explain their position.

We will consider the circumstances of the dispute and work with the people involved to identify whether an agreed or practical resolution can be reached.

If the dispute has not been resolved within 72 hours of notice being given, we will provide a written statement explaining:

- why the dispute has not yet been resolved; and
- what we propose to do to resolve it.

Lake Illawong Residential Village aims to complete its internal resolution process within 28 days of receiving notice of the dispute, wherever reasonably practicable.

The 28-day period is our Village resolution target and does not prevent a resident from seeking external information, advice or assistance at any time.

5.5 Stage Four — Notifying the Outcome of the Dispute

We will notify the resident of the outcome of the dispute by email. A printed copy of the outcome notification will also be provided on request.

The notification will explain whether the dispute:

- has been resolved; or

- has not been resolved,

and will provide relevant details or reasons for the outcome.

Where a dispute has not been resolved, we will also provide the resident with information about available external assistance or dispute resolution pathways.

Our internal Village Dispute process concludes when the outcome has been notified.

6. Further Assistance and External Dispute Resolution

A resident may seek external information, advice or assistance about a Village Dispute at any time. A resident does not have to complete our Village Dispute Resolution Procedure before seeking external assistance or using an external dispute resolution process.

External assistance may include:

- Consumer Affairs Victoria for information and guidance about retirement village disputes;
- VicAssist for assistance with resolving an eligible Village Dispute; or
- independent legal advice.

We will provide reasonable assistance to a resident who wishes to access an external dispute resolution pathway, where practicable.

7. Record Keeping

We will keep a record of Village Disputes notified under this Procedure.

For each Village Dispute, we will record, where applicable:

- details of the dispute, including the resident or residents involved and the date notice of the dispute was given;
- the outcome sought by the resident who gave notice of the dispute, if known;
- whether notice of the dispute was given verbally or in writing;
- relevant correspondence or documents provided in relation to the dispute;
- actions taken in response to the dispute; and
- the outcome of the dispute.

We will keep these records for at least 7 years after the day on which notice of the dispute was received.

8. Annual Report to Residents

Each year, we will present a report on Village Disputes at the annual meeting of residents.

The report will include:

- the number and nature of Village Disputes we received notice of during the previous year;
- the outcome of each dispute, including any action taken to resolve it; and
- any changes made or proposed to address issues arising from a dispute.

The report will not identify the parties to a dispute.

We will provide a copy of the report presented at the annual meeting to the Director of Consumer Affairs Victoria within 14 days after the annual meeting.

9. Training

We will ensure that people involved in administering or handling Village Disputes:

- understand our commitment to resolving Village Disputes and do not discourage a resident or their representative from giving notice of a dispute;
- are familiar with this Procedure; and
- receive appropriate training and guidance to carry out their responsibilities.

10. Reviewing Our Procedure

We will:

- monitor our compliance with this Procedure; and
- review this Procedure at least every 2 years.

11. Providing a Copy of This Procedure

We will:

- make this Procedure publicly available on our website;
- make a copy available in the Village Library; and
- on request, provide a copy of this Procedure to a resident or prospective resident within 2 business days of receiving the request.

12. Definitions

In this Procedure:

Act means the Retirement Villages Act 1986 (Vic), as amended or replaced from time to time.

Management Dispute has the meaning given in section 4.2 of this Procedure.

Resident means a person who is, or was, a resident of the Village under the Act, including a non-owner resident or owner resident.

Resident Dispute has the meaning given in section 4.3 of this Procedure.

Village means Lake Illawong Residential Village.

Village Dispute has the meaning given in section 4.1 of this Procedure.

We, us or our means the operator of Lake Illawong Residential Village under the Act from time to time.

13. Contact

If you have any questions about this Procedure, please contact our Primary Contact Person, whose contact details are set out in section 5.2 of this Procedure.